



File No.: EXP202202636

## RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On 28/1/22, a complaint was filed with entry registration number 000007128e2200003904 before the Spanish Agency for Data Protection against the MINISTRY OF JUSTICE with NIF S2813610I (hereinafter, the complained party). The reasons for the complaint are as follows: Complaint directed against the Ministry of Justice for the use of Google analytical cookies. The complainant sent an email to the DPO on 24/1/22, highlighting the use of the aforementioned devices and the fact that consent was understood to be granted by users simply by continuing to browse. Furthermore, it states that the use of Google Analytics implies an international transfer of data, with no evidence that the corresponding guarantee measures have been adopted. With this message, the complainant intended to exercise their right to object to this processing of their data. A copy of the aforementioned message and the legal notice, including the cookie notice, is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

On 06/04/2022, a response to the forwarded complaint was received by this Agency.

According to the preliminary information provided, there are reasonable indications of a possible violation of the rules within the competencies of the Spanish Agency for Data Protection, without prejudice to what may be determined during the processing.

THIRD: On April 28, 2022, in accordance with Article 65 of the LOPDGDD, the complaint presented was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

### LEGAL GROUNDS

#### I

##### Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI), and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

#### II

##### Preliminary investigative actions

Article 67 of the LOPDGDD establishes the following regarding preliminary investigative actions:

“1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing if there is one, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

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III

#### Expiration of Proceedings

In relation to the preliminary proceedings, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the RGPD and the LOPDGDD, in its article 122.4 states that “The expiration of the term without a decision having been issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

In accordance with the provisions of the transcribed articles, the preliminary proceedings must be understood as expired if, more than twelve months have elapsed from the date of admission of the complaint, no decision has been issued and notified to initiate sanctioning proceedings.

In the present case, the computation of the twelve-month maximum duration of the preliminary proceedings began on April 28, 2022, and is currently still pending completion, therefore they must be declared expired.

IV

#### Initiation of New Investigative Proceedings

On the other hand, article 95.3 of the aforementioned LPACAP states that:

“Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired proceedings will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into this new procedure. In any case, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed in the new procedure.”

In this regard, the National Court, in its ruling of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not constitute any obstacle for that entity to initiate or restart other preliminary investigative proceedings regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has not yet been concluded as new lines of investigation have emerged that, due to their relevance, must be appropriately evaluated and developed in all their scope, therefore, despite the time elapsed, it is essential to fully complete the proposed scope of investigation. Furthermore, this new investigative context has proven to be a process of enormous complexity, both from a technical standpoint and due to the volume of documentation that must be analyzed and studied, which requires an additional period of time to adequately comply with the planned process.

Consequently, since the facts under investigation are not prescribed, instructions are given to the

General Subdirectorate of Data Inspection to initiate new investigative proceedings.

Therefore, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to the MINISTRY OF JUSTICE and to the complainant.

Against this resolution, which concludes the administrative process as provided by article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

907-091222

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)